



Aware Super - Increased interest in Keyton

MN-70030

Phase 1 Determination

Acquisition may be put into effect

8 September 2026

1. Determination and statement of reasons

Notified acquisition	Aware Super Pty Limited as trustee of Aware Super (Aware)'s proposed acquisition of an additional 25.1% of the issued units and issued shares in Keyton Trust and Keyton Holding Pty Limited respectively (together, Keyton) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Aware, is an Australian profit-for-members superannuation fund with approximately 1.3 million members and \$245 billion in funds under management. As an institutional investor, the fund manages a diversified global portfolio spanning equities, infrastructure, private equity and real estate. Aware's interests include a 100% stake in Oak Tree Holdings Pty Ltd (Oak Tree), an owner, developer and operator of retirement village accommodation. Aware currently holds 49.9% of the units and shares in Keyton. Upon completion of the Acquisition, Aware would hold 75% of the units and shares. AMAL Trustees Limited as trustee of the Viventi Investments Holding Trust is retaining its 25% interest in the units and shares in Keyton. The target, Keyton, is an owner, developer and operator of retirement village accommodation across Australia. Keyton operates more than 65 retirement villages across the ACT, NSW, Queensland, South Australia and Victoria, housing more than 15,000 residents.
Overlap and relationship between the Parties	Aware and Keyton are both active in the ownership, development, and operation of retirement villages in the following local areas: ▪ The Southern Highlands, NSW ▪ Newcastle and the Hunter Valley, NSW ▪ Southwest Brisbane, QLD ▪ The Sunshine Coast, QLD (together, the Overlap Areas).
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the

	notification form, information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • Aware and Keyton would continue to face competition from multiple alternative suppliers of retirement villages, and other suppliers of independent retirement living accommodation, in each of the Overlap Areas.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**